

सुजुकी का संविधान नहीं चलेगा

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MARUTI SUZUKI



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The Truth Takes Time.

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“Companies Have Made Up Their Own Law”: Labour Unions, Activists Host PC Ahead of Maruti Suzuki Workers’ ‘Chalo IMT’ March on Friday, Implore Public to Join

At the Press Club of India on 16th October 2024, representatives of four major ignored workers' struggles — Maruti-Suzuki, Samsung India, Dolphin-Lucas TVS, and Darjeeling's tea plantation workers — held a press conference to address the near-total absence of media coverage of their movements, ahead of the 'Chalo IMT' march.

BY MOULI SHARMA

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“When the bonus season comes, i.e. the festive season around August-September, we start seeing garden closures one after another. Basically, when it’s time [to pay the bonus], they simply run away. In the last month alone, there have been talks of multiple gardens closing: Singtom Garden, Peshok, Soom, Lingia, Barnesbeg, Kumai – all of these were up for closure.” —Nayanjyoti, Labour Activist, 16th October 2024, PCI

The conference at the Press Club of India held on the 16th of October, paneled spokespersons of the many prominent workers' protests across the country that have been absent from the mainstream media, & implored the public & press to acknowledge their struggle. Senior Supreme Court Adv. Colin Gonsalves and Anjali Deshpande, the latter being one of the few journalists to cover the Maruti Workers' struggle when it began over a decade ago, were also present.

16th October 2024, New Delhi: On Wednesday afternoon at the Press Club of India, representatives from four of the country's ongoing workers' protests along with prominent journalists & activists organized a press conference to address the stark lack of media attention these movements are receiving in the mainstream news. The four movements in question are the Maruti Suzuki workers' struggle in Manesar, Haryana; the Samsung strike in Sriperumbudur, Tamil Nadu; the Dolphin and Lucas TVS struggle in Uttarakhand; and the Darjeeling hills tea plantation workers' struggle in West Bengal. Of these, only the Samsung strike in Tamil Nadu has featured in the mainstream news, largely owing to the workers' own effort to carry out independent reporting.

Maruti Suzuki Workers Struggle, Manesar, Haryana: "Chalo IMT Manesar!"

Beyond the distant movements of Darjeeling, Tamil Nadu & Uttarakhand, the movement that stood out most in the press conference – not only because two out of the four protests represented were part of it, resisting different parts of the same corporate machinery, but also because it was based right here in Delhi NCR – was the Maruti Suzuki workers' struggle in Manesar. This protest is also tied to the Dolphin and Lucas TVS struggle in Uttarakhand, as Dolphin is a supplier of Maruti, & both are cases of gross violations of labour laws for factory workers.

On 18th July 2012, after an incident of caste-based discrimination between management & the then recently formed union spiraled out of control, 13 workers in Maruti's Manesar factory were charged with crimes they did not commit, arrested & jailed for sentences of life. This is the incident that sparked the movement that spanned 10 years and 3 plants of Maruti Suzuki, resulting in the illegal termination of 2346 workers, the arrest of as many as 150 workers, & withheld dues of over 20,000. In 2017, 117 of the detained workers were acquitted and released, after wrongfully being jailed for several years. The continued resistance of the Maruti workers – most of whom despite being acquitted carry with them the tag of 'jailed worker' & cannot find employment - has been a testament to their resilience, & their unceasing decade-long struggle finally resulted in the 13 jailed for life leaders securing bail in 2022.

Despite the dramatics of their story, media coverage of this 12-year-long battle has been negligible. A month ago, prior to the Haryana elections, the workers resumed their strike through an indefinite sit-in starting on the 18th of September. This was covered by Scroll.in, but the piece^[1] itself was notably written by none other than Nandita Haksar, who is the co-author of Anjali Deshpande in their book, "Japanese Management, Indian Resistance," one of the only pieces of long-form journalistic coverage the case. The latter was also one of the speakers at the press conference.

Labour activist & member of the Maruti Suzuki Struggle Committee, Satish, could be seen getting emotional at the press conference, recounting the police torture meted out to protesting workers back in 2012-2014.



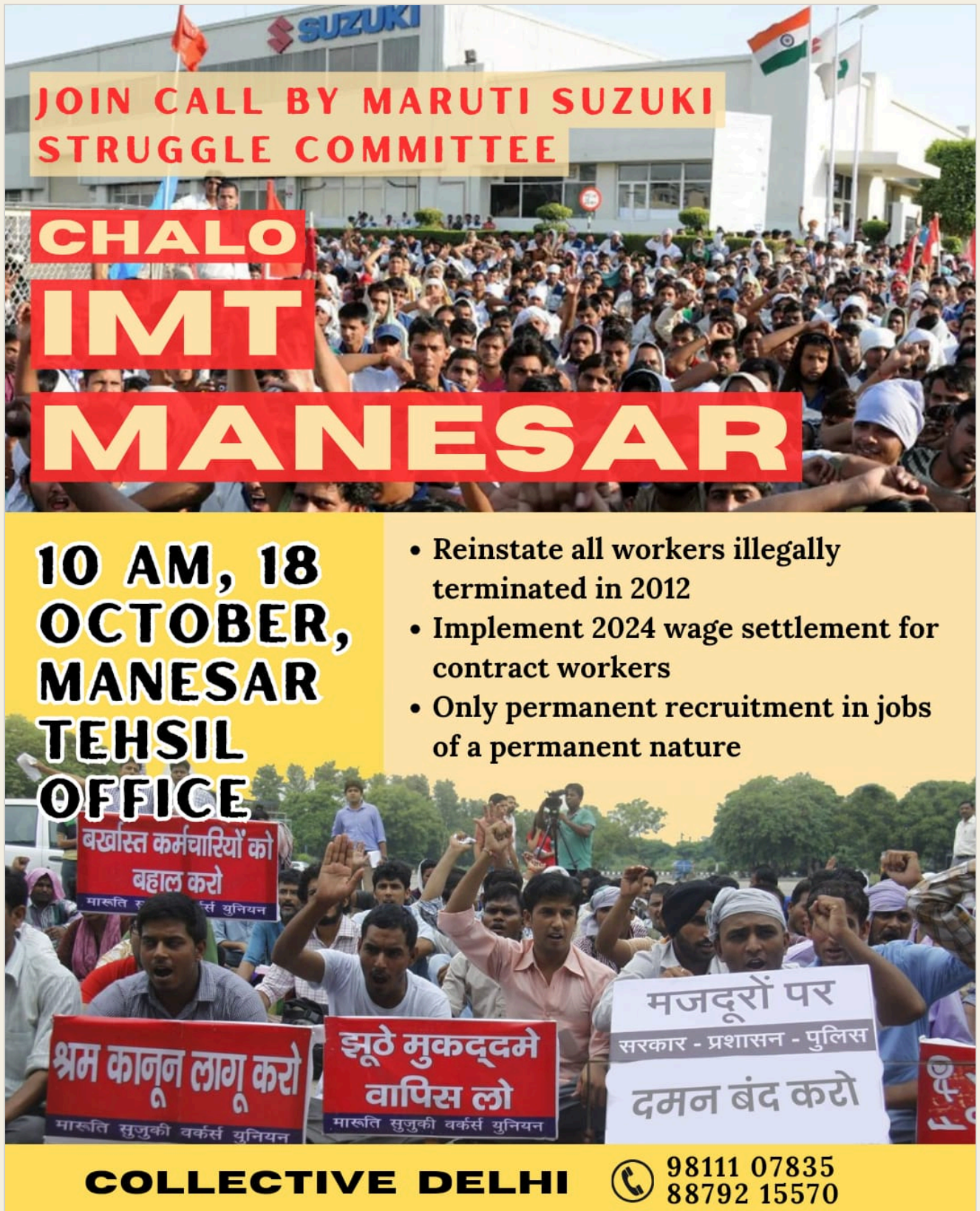
From left to right: Labour Activist Nayanjyoti, Union Member Ajit, Labour Activist Santosh, Union Member Satish, Sen. SC Adv. Colin Gonsalves & Journalist Anjali Deshpande, 16th October 2024 at the Press Club of India. Source: TVE

"They were picking us off one by one. Finally, we gathered everyone in the village & union & showed up in front of the police together saying, 'You arrest one of us each day, beat him up, torture him. We thought we'd gather in one place to make it easy for you, so you can just arrest all of us now.' That is how the arrests stopped," Satish said.

In her book, Anjali Deshpande points to a small, seemingly insignificant figure to tell the reader what the average day for a worker in Maruti's factory would be like: 7.5 minutes. This is the amount of time a worker was given in the factory to do everything he needed to do, twice in the entire day's shift. "The tea itself took 1.5 minutes to arrive. So they had to choose

After the polls, whatever hope^[1] the workers had put in politics stands quashed. Since 10th October 2024, the workers have instead doubled down on their fight against Maruti, supplementing their infinite sit-in with a relay hunger strike. Their demands are simple: immediate reinstatement of all illegally terminated workers (2346 including both permanent & contract workers), proper wage settlement & permanency for all temporary workers (more than 20,00 in total), and the scrapping of all false cases slapped against Maruti workers over the years without evidence or due procedure. On Friday, the workers will march to IMT Manesar, & urge the press & citizenry to join them at the Manesar Tehsil Office.

"We appeal to all of you, to come join us, show your support in large numbers. That is all," concluded Satish. The march will begin at 10:00 AM on 18th October, 2024.



JOIN CALL BY MARUTI SUZUKI STRUGGLE COMMITTEE

**CHALO
IMT
MANESAR**

**10 AM, 18
OCTOBER,
MANESAR
TEHSIL
OFFICE**

- Reinstatement all workers illegally terminated in 2012
- Implement 2024 wage settlement for contract workers
- Only permanent recruitment in jobs of a permanent nature

बर्खास्त कर्मचारियों को बहाल करो
मारुति सुजुकी वर्कर्स युनियन

श्रम कानून लागू करो
मारुति सुजुकी वर्कर्स युनियन

झूठे मुकद्दमे वापिस लो
मारुति सुजुकी वर्कर्स युनियन

मजदूरों पर सरकार - प्रशासन - पुलिस दमन बंद करो

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“Shifting permanent workers to contract allows the company to subvert the Minimum Wage Act, such that now the ‘contract workers’ have to work overtime to earn the 5,000 rupees of minimum wage, Women who were working 8 hours a day had to now work 12 hours a day just to get Rs. 5000 a month. This is why they shifted over 3,000 workers’ status from permanent to contractual. This is a blatant violation of the most basic legal provisions. These companies have made up their own law.” —Ajit, Bellsonica Auto Comonent Employees Union, 16th October 2024, PCI

Ajit’s statement also recounts the details of the physical & legal intimidation that the protesting workers had to face, with several women being stalked, harassed & called slurs by private bouncers hired to barricade their protests. A protestor’s skull was cracked open. When they went to the police to report these incidents, cases were instead registered against them.

“The workers started their infinite dharnas from (sic) 28th August 2024 demanding permanent jobs and reinstatement with full back wages. Luas TVS workers [have been struggling] for nearly one year & are continuing their dharna since 26th October 2024,” as per the release, with similar demands along with the recognition of their union.

In addition, since the last Thursday, a Mazdoor-Kisan Mahapanchayat in Rudrapur, in the industrial area of Udham Singh Nagar, workers of Dolphin, Lucas TVS, Interarch & Karolia Lighting have come together – joined even by outsider unions such as Ajit’s – in an inter-union worker’s struggle that has proved its own capacity for solidarity in the clearest terms possible.



Via Ground Xero^[3]

Darjeeling Hills Tea Plantation Workers’ Struggle in West Bengal: 17 Crores in Unpaid Dues

Earlier in the conference, activist Nayanjyoti spoke of the ongoing Darjeeling hill tea garden worker’s struggle, citing the role of investors in the recent large-scale closures of tea gardens & the massive amounts of unpaid dues, figures that have been so far underreported.

“Owners in the tea plantation business nowadays keep talking a lot about how they’re suffering losses. The business of tea requires certain necessary investments, ones that these ‘speculative [businessmen]’ are not interested in making. Every few years, whole plantations have to be uprooted & replanted, & there are certain annual investments as well that are essential, be it irrigation or any other,” said Nayanjyoti. “Then there is the matter of bonus. When the bonus season comes, i.e. the festive season around August-September, we start seeing garden closures one after another. Basically, when it’s time [to pay the bonus], they simply run away. In the last month alone, there have been talks of multiple gardens closing: Singtom Garden, Peshok, Soom, Lingia, Barnesbeg, Kumai – all of these were up for closure.”

“When the bonus season comes, i.e. the festive season around August-September, we start seeing garden closures one after another. Basically, when it’s time [to pay the bonus], they simply run away. In the last month alone, there have been talks of multiple gardens closing: Singtom Garden, Peshok, Soom, Lingia, Barnesbeg, Kumai – all of these were up for closure.” —Nayanjyoti, Labour Activist, 16th October 2024, PCI

Nayanjyoti’s full statement, which went on to discuss not only the 87 plantations in the Kalimpong area but also the additional 227 including the Terai-Dooars regions, all of which in total employ a total of approximately 8 lakh workers, all of whom are being denied their basic rights – from wages to safety equipment – as guaranteed to them under the Plantation Labour Act, 1951. A recent opinion piece^[41] by the Darjeeling Chronicle highlighting the struggle of plantation workers cultivating one of the world’s most popular teas makes it clear that the recent workers’ strikes have put the long-ignored exploitation in the industry in the public eye.



Via Ground Xero^[31]

By far the most damning piece of data in the press release as well as Nayanjyoti’s statement, though, was the figure of Rs. 17 crore, which was the total amount of pending wages that the Longview Tea Garden alone owed to its 300 workers up till

Beyond this small victory, though, the struggle of the Darjeeling Hills tea gardens is far from over, as they are now in a fierce headlock with the government over rightful rates of bonus & complete fulfillment of pending dues. Recently, BJP's West Bengal MP Raju Bista has written to the Minister of Commerce & Industry Piyush Goyal & Chief Minister Mamata Banerjee addressing the matter of the closure of 'at least 10^[51]' tea gardens since 2008, though his suggestions differ from the workers'.

Samsung Workers' Strike, Sriperumbudur, Tamil Nadu: A Win for the Workers



Via Ground Xero^[3]

"Workers don't have a canteen or even toilets; these are the things they're fighting for," said Mazdoor Patrika's Santosh, a labour activist & journalist for WorkersUnity – a worker-led media organisation that is trying to fill in the gap of the absent Indian labour beat – representing the Samsung workers in Sriperumbudur. "It was independent organisations that first drew attention to the struggle in Tamil Nadu – Eedena, Ground Xero^[3], & WorkersUnity."

As per PCI's official press release, the core issue of the strike is the demand for union recognition. The management refuses to allow a union and claims they have addressed other concerns like better food and transportation, while workers say that these are basic rights that have been neglected for 16 years, and that the strike will continue until the management, "respects the right to unionize & negotiates with the workers' chosen representatives." The workers also criticise the government for siding with the company as it blatantly violates labour laws, stating that it seems the government, "only cares about foreign investment."

As of October 16th, the strike has been called off after workers unanimously voted^[6] to end the strike post-progress in government negotiations, a big victory for all labour movements across the nation. The workers will return to work on the 17th, though the right to unionize has yet to gain recognition.

In addition to union spokespersons and Anjali Deshpande, senior Supreme Court Adv. Colin Gonsalves, the President & General Secretary of COLLECTIVE Delhi's Central Committee, Shambhavi & Sourya respectively, along with senior

Source: TVE

ABOUT THE AUTHOR



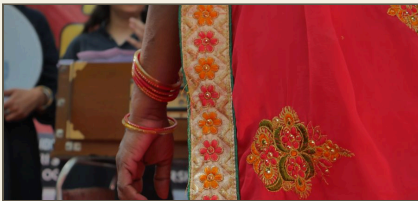
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Mouli Sharma is a journalist, freelance illustrator, and writer from New Delhi, India. She is a published photojournalist & illustrator, having been featured in The Hindu College Gazette, & the quarterly Pink Disco. Mouli took over as the Editor of The Voice Express (<https://thevoiceexpress.github.io/e-mag/>) back in September 2023.

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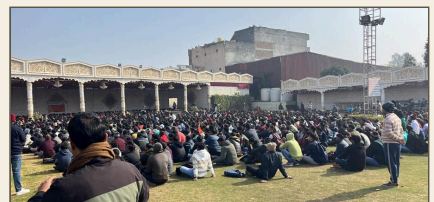
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SOURCES & REFERENCES

- [1] the piece

[2] ground reality

[3] Ground Xero
- [4] opinion piece

[5] at least 10

[6] unanimously voted